

is made between the State, the legislature and the executive of the State.

The Act of August 8, 1911 (37 Stat. c. 5, 13) is no longer in force. House File 1456 does not violate the Act of August 8, 1911.

When the question arises as to whether or not the legislature has acted in accordance with the constitution or laws of a State, the judgment of the highest court of that State is conclusive.

There is no violation of the Fourteenth Amendment.

MR. CHIEF JUSTICE HUGHES delivered the opinion of the Court.

Under the re-apportionment following the fifteenth decennial census, as provided by the Act of Congress of June 18, 1929 (c. 28, 46 Stat. 21, 26), Minnesota is entitled to nine representatives in Congress, being one less than the number previously allotted. In April, 1931, the bill known as House File No. 1456, dividing the State into nine congressional districts and specifying the counties of which they should be composed, was passed by the House of Representatives and the Senate of the State and was transmitted to the Governor, who returned it without his approval. Thereupon, without further action upon the measure by the House of Representatives and the Senate, and in compliance with a resolution of the House of Representatives, House File No. 1456 was deposited with the Secretary of State of Minnesota. This suit was brought by the petitioner as a 'citizen, elector and taxpayer' of the State to obtain a judgment declaring invalid all filings for nomination for the office of representative in Congress, which should designate a subdivision of the State as a congressional district, and to enjoin the Secretary of State from giving notice of the holding of elections for that office in such subdivi-